

Chief Justice's Court

Case :- WRIT - C No. - 13868 of 2016

Petitioner :- Subhash Chandra Maheshwari

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C., Amrendra Nath Singh, Chandan Agarwal

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Yashwant Varma, J.

Connect with Writ - C No. 43973 of 2011 and put up on
Monday i.e. 4 April 2016 as fresh.

Order Date :- 30.3.2016
VMA

(Dr. D.Y. Chandrachud, C.J.)

(Yashwant Varma, J.)

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The petitioner has sought to challenge a citation dated 18 March 2016 for the recovery of an amount of Rs.6,05,22,060/-.

The second prayer is for restraining the respondents from adopting any coercive measures. Petitioner also seeks to challenge the provisions of clause 4.3 (f) (v) of the UP Electricity Supply Code, 2005.

A preliminary objection has been raised to the maintainability of the writ petition on the ground that the substantive challenge to the demand of an amount of Rs.6,05,22,060/- from the petitioner is the subject matter of a pending writ petition, namely Writ-C No. 43973 of 2011. The papers of the writ petition have been produced before the Court. The main relief in the earlier writ petition was to quash a recovery citation dated 26 July 2011 in respect of the same amount of Rs.6,05,22,060/-. It is not in dispute that the demand in the earlier writ petition pertains to the same period and same amount as in the present proceedings. The earlier writ petition was initially heard on 5 September 2011 when the recovery

proceedings were stayed. On 14 September 2011, the interim order was extended till the next date of listing. Thereafter when the petition came up on 27 January 2016 and later on 3 February 2016, the Division Bench directed the Secretary, Power to take necessary action against all those officers of the department who had failed to recover an amount of Rs.6,05,22,060/-. On 23 February 2016, a further opportunity was granted. Eventually on 8 March 2016, a Division Bench of this Court vacated the interim order for the reasons which were indicated there.

The citation which has been issued on 18 March 2016 is only consequential to the vacating of the interim relief by the Division Bench on 8 March 2016. Consequently, a second writ petition for challenging, what emerges, is the same demand of Rs.6,05,22,060/- would clearly not be maintainable. Evidently, the object and purpose of filing of a second writ petition in respect of the same demand is to obviate the interim order of the Division Bench vacating interim relief passed on 8 March 2016. This is clearly impermissible. The challenge to the consequential recovery citation dated 18 March 2016 can well form the subject matter of the first writ petition by way of a formal application for amendment which we grant liberty to the petitioner to move. Similarly the challenge to clause 4.3 (f) (v) of the UP Electricity Supply Code, 2005 is a matter which can

be evidently raised by amending the first writ petition which is pending before the Court.

We, accordingly, decline to entertain the present writ petition only on this ground leaving it open to the petitioner, to apply by means of suitable amendment in the earlier writ petition.

The writ petition is, accordingly, dismissed. There shall be no order as to costs.

Order Date :- 4.4.2016

RK

(Yashwant Varma, J) (Dr D Y Chandrachud, CJ)